

compel further responses, the Court does not find it reasonable to sanction Plaintiff for the total amount of hours spent on the combined motion. That said, the Court finds that 1 hour is a reasonable number of billable hours for preparation of the motion to compel compliance.

Based on the foregoing, Defendants request for sanctions as against Plaintiff is GRANTED IN PART. Plaintiff's counsel is ordered to pay to Defendants, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (1 hr x \$230/hr) = \$230.

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Creditors Adjustment Bureau, Inc. v. Rodrigo Barrera Lara et al **26CV000234**

[1] MOTION TO COMPEL RESPONSES TO PLAINTIFF'S DEMAND FOR IDENTIFICATION, PRODUCTION, INSPECTION AND COPYING OF DOCUMENTS AND OTHER TANGIBLE THINGS; REQUEST FOR MONETARY SANCTIONS [as to Defendant Rodrigo Barrera Lara]

TENTATIVE RULING: The motion is GRANTED. Within 10 calendar days of service of notice of entry of order, Barrera shall (1) serve verified code-compliant responses, without objections, to Plaintiff's First Set of Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things; and (2) pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75. Plaintiff shall provide notice of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") moves, pursuant to Code of Civil Procedure, section 2031.300,⁵ for an order compelling Defendant Rodrigo Barrera Lara ("Barrera") to provide responses to Plaintiff's First Set of Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things ("Demands"). Plaintiff also moves, pursuant to sections 2023.010, 2023.030, and 2031.300, for monetary sanctions against Barrera in the amount of \$2,472.75 for the reasonable expenses and attorney's fees incurred by the moving party in connection with this motion.

If a party to whom requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (§ 2031.300, subs. (a)-(c).) All that need be shown in the moving papers is that a request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has

⁵ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a “reasonable and good faith attempt” to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of George Aposhian (“Aposhian Decl.”) at ¶¶ 3, 5, Exh. 1.) Thus, Barrera shall serve verified code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (§ 2031.300, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2031.300, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Barrera acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as he has failed to file an opposition to the motion. The Court does not find the hourly rate charged by Plaintiff’s counsel reasonable, as it exceeds the range for hourly rates prevailing in the community for similar work. (See Aposhian Decl. at ¶ 6.) The Court reduces counsel’s hourly rate to \$500. The Court does not find 2 hours reasonable for preparation of the straightforward, two-page motion. (*Ibid.*) The Court reduces the hours expended to one hour. Nor does the Court grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff’s request for sanctions as against Barrera is GRANTED IN PART. Barrera is ordered to pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75 [= \$500/hr x 1 hr + \$60 filing fee + \$12.75 e-filing fee] within 10 calendar days of notice of entry of this order.

[2] MOTION TO COMPEL RESPONSES TO PLAINTIFF’S FIRST SET OF SPECIAL INTERROGATORIES; REQUEST FOR MONETARY SANCTIONS [as to Defendant Rodrigo Barrera Lara]

TENTATIVE RULING: The motion is GRANTED. Within 10 calendar days of service of notice of entry of order, Barrera shall (1) serve verified code-compliant responses, without objections, to Plaintiff’s First Set of Special Interrogatories; and (2) pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75. Plaintiff shall provide notice of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") moves, pursuant to Code of Civil Procedure, section 2030.290,⁶ for an order compelling Defendant Rodrigo Barrera Lara ("Barrera") to provide responses to Plaintiff's First Set of Special Interrogatories. Plaintiff also moves, pursuant to sections 2023.010, 2023.030, and 2030.290, for monetary sanctions against Barrera in the amount of \$2,472.75 for the reasonable expenses and attorney's fees incurred by the moving party in connection with this motion.

If a party to whom interrogatories were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (§ 2030.290, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a "reasonable and good faith attempt" to resolve the matter informally with opposing counsel before filing the motion. (§ 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of George Aposhian ("Aposhian Decl.") at ¶¶ 3, 5, Exh. 1.) Thus, Barrera shall serve verified code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (§ 2030.290, subds. (a)-(b).)

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2030.290, subd. (c).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Barrera acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as he has failed to file an opposition to the motion. The Court does not find the hourly rate charged by Plaintiff's counsel reasonable, as it exceeds the range for hourly rates prevailing in the community for similar work. (See Aposhian Decl. at ¶ 6.) The Court reduces counsel's hourly rate to \$500. The Court does not find 2 hours reasonable for preparation of the straightforward, two-page motion. (*Ibid.*) The Court reduces the

⁶ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

hours expended to one hour. Nor does the Court grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff's request for sanctions as against Barrera is GRANTED IN PART. Barrera is ordered to pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75 [= \$500/hr x 1 hr + \$60 filing fee + \$12.75 e-filing fee] within 10 calendar days of notice of entry of this order.

[3] MOTION TO COMPEL RESPONSES TO PLAINTIFF'S DEMAND FOR IDENTIFICATION, PRODUCTION INSPECTION AND COPYING OF DOCUMENTS AND OTHER TANGIBLE THINGS; REQUEST FOR MONETARY SANCTIONS [as to Defendant General Contractor Inc.]

TENTATIVE RULING: The motion is DENIED.

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") moves, pursuant to Code of Civil Procedure, sections 2023.010, 2023.030 2031.300, for an order compelling Defendant General Contractor Inc. ("General Contractor Inc.") to provide responses to Plaintiffs First Set of Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things, and for monetary sanctions in the amount of \$2,472.75.

The motion is improper as the Court lacks jurisdiction over General Contractor Inc. There is no Proof of Service of the Summons and Complaint on General Contractor Inc., and there is no indication, from the Court file, that General Contractor Inc. has appeared in the action or otherwise waived service. (See *AO Alfa-Bank v. Yakovlev* (2018) 21 Cal.App.5th 189, 202 ["In the absence of service of process (or waiver of service by the defendant), a court ordinarily may not exercise power over a party the complaint names as defendant."].) Contrary to Plaintiff's counsel's declaration, there is no Answer by General Contractor Inc. in the file. (Declaration of George Aposhian ("Aposhian Decl."), ¶ 2.) Rather, the only Answer in the Court file is that by Co-Defendant Rodrigo Barrera Lara. (See 4/2/26 Answer, ¶ 2.) Nor can the Court construe Barrera's Answer, filed *in propria persona*, as being filed on behalf of himself *and* General Contractor Inc. because a corporation cannot represent itself *in propria persona* or through a corporate officer, director or other employee who is not an attorney. (*CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.)

Given the Court's lack of jurisdiction of General Contractor Inc., the motion brought against it is DENIED.

[4] MOTION TO COMPEL RESPONSES TO PLAINTIFF'S FIRST SET OF SPECIAL INTERROGATORIES; REQUEST FOR MONETARY SANCTIONS [as to Defendant General Contractor Inc.]

TENTATIVE RULING: The motion is DENIED.

Plaintiff Creditors Adjustment Bureau, Inc. (“Plaintiff”) moves, pursuant to Code of Civil Procedure, section 2023.010, 2023.030, and 2033.290, for an order compelling Defendant General Contractor Inc. (“General Contractor Inc.”) to provide responses to Plaintiffs First Set of Special Interrogatories, and for monetary sanctions in the amount of \$2,472.75.

The motion is improper as the Court lacks jurisdiction over General Contractor Inc. There is no Proof of Service of the Summons and Complaint on General Contractor Inc., and there is no indication, from the Court file, that General Contractor Inc. has appeared in the action or otherwise waived service. (See *AO Alfa-Bank v. Yakovlev* (2018) 21 Cal.App.5th 189, 202 [“In the absence of service of process (or waiver of service by the defendant), a court ordinarily may not exercise power over a party the complaint names as defendant.”].) Contrary to Plaintiff’s counsel’s declaration, there is no Answer by General Contractor Inc. in the file. (Declaration of George Aposhian (“Aposhian Decl.”), ¶ 2.) Rather, the only Answer in the Court file is that by Co-Defendant Rodrigo Barrera Lara. (See 4/2/26 Answer, ¶ 2.) Nor can the Court construe Barrera’s Answer, filed *in propria persona*, as being filed on behalf of himself *and* General Contractor Inc. because a corporation cannot represent itself *in propria persona* or through a corporate officer, director or other employee who is not an attorney. (*CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.)

Given the Court’s lack of jurisdiction of General Contractor Inc., the motion brought against it is DENIED.